

CONFIDENTIALITY AGREEMENT

BETWEEN PARTIES:

Innovative beauty Lab (Operation name: Elixderm)

20 Newbridge Rd
Etobicoke, ON M8Z 2L7

And

Company name and Address:

- I. Parties own, possess or control certain trade secrets, and proprietary and confidential information acquired through the expenditure of time, effort and money, of a technical and business nature relating to their products/services.
- II. Parties are currently engaged in discussions relating to possible future business projects with respect to the performance of one or more supplier/manufacturing functions and such discussions will involve disclosing Confidential Information (as defined in this Agreement) in one form or another.
- III. Parties wish to define their rights and Discloser/Recipient obligations with respect to disclosure of the Confidential Information.

In consideration of the disclosing of Confidential Information, the parties agree as follows:

1. DEFINITIONS

Where used in this Agreement, the words and phrases below mean the following:

- a) “Confidential Information” means all form and manner of information, which the Recipient receives or acquires from Discloser or any of its employees, contractors, or agents, including but not limited to:
 - i. all reports, memoranda, plans, drawings, schematics, designs, calculations, formulas, data, methods, techniques, procedures and any complication or

combination thereof, relating or pertaining to the Project or to any aspect of Discloser's operations; and

- ii. any other information which Discloser has, in writing, requested the Recipient to keep confidential or which should be reasonably considered as being confidential having regard to the nature, appearance, location or value of such information; but excluding all Non-Proprietary Information.

b) "Non-Proprietary Information" means:

- i. information which is within the public domain at the time of its disclosure to the Recipient or which thereafter enters the public domain through no fault of the Recipient, but only after such information becomes part of the public domain and which was publicly disclosed otherwise than by breach of this Agreement;
- ii. information which the Recipient can show that was in its possession prior to receipt or acquisition from Discloser and which is not subject to any confidentiality restriction; and
- iii. information which, following its disclosure to the Recipient, is received by the Recipient without obligation of confidence from a third party who the Recipient had no reason to believe was not properly or lawfully in possession of such information free from any obligations of secrecy.

Any information consisting of a combination of Non-Proprietary Information and Confidential Information will only be considered by the Recipient as Non-Proprietary Information if the combination itself is in the public domain or the prior possession of the Recipient.

c) "Recipient" means either party, its affiliates, subsidiaries, related companies, agents and/or representatives.

2. CONFIDENTIAL INFORMATION

The Recipient acknowledges that the Confidential Information is a special, valuable and unique asset of the Discloser and the Recipient agrees that:

- a) it shall not use any of the Confidential Information for purposes other than the projects, as intended by Discloser or as otherwise agreed upon by the parties;
- b) the Confidential Information shall be kept in strict confidence by the Recipient. The Recipient shall not disclose, allow access to, transmit or transfer the Confidential Information to a third party without Discloser's prior written consent. The Recipient may only disclose the Confidential Information to its employees and contractors on a "need to know" basis. The Recipient shall, prior to disclosing the Confidential Information to such employees issue appropriate written instructions to them to satisfy

its obligations herein and to receive and use the Confidential Information on a confidential basis on the same conditions as contained in the Agreement;

- c) in the event the Recipient needs to disclose Confidential Information to some of its directors, officers, agents, affiliates, financial advisors, consultants, lawyers and accountants in order to properly provide services or advice to Discloser for the Project, such directors, officers, agents, affiliates, financial advisors, consultants, lawyers and accountants have first entered into an agreement in writing with the Recipient that applies to the Confidential Information and imposes obligations of secrecy equal to or greater than the obligations contained herein; and
- d) if requested by Discloser, the Recipient shall immediately return to Discloser all Confidential Information and any copy of the information under the power or control of the Recipient, and delete the Confidential Information from all retrieval systems and databases or destroy same as directed by Discloser. The obligation to delete or destroy shall also extend to any document prepared by the Recipient, which embodies or contains extracts from the Confidential Information.

Notwithstanding the foregoing, the Recipient may disclose such Confidential Information to a government, regulatory or judicial agency as may be required by law.

3. NO LICENSE OR COMMITMENT

Neither this agreement nor any of its provisions shall be construed as a transfer or license of the Confidential Information to the Recipient. Neither this Agreement nor any of its provisions shall be considered or construed as a commitment by Discloser to engage the Recipient in any work except as expressly agreed between the Parties.

4. SEVERABILITY

If any provision of this Agreement should be held invalid, illegal or unenforceable then, in such event, the remainder of the Agreement shall still be and continue to be in full force and effect as if such invalid illegal or unenforceable provision had been deleted from or never included in this Agreement.

5. GOVERNING LAW

This Agreement shall be governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein.

6. SUCCESSORS AND ASSIGNS

The Agreement may not be assigned by the Recipient without the prior written consent of Discloser. All of the covenants and obligations in this Agreement of the Parties shall apply to and ensure to the benefit of and be binding upon their respective legal representatives, successors and permitted assigns.

7. ENTIRE AGREEMENT

This Agreement sets forth the entire Agreement between the Parties in connection with the subject matter hereof. No alteration, amendment or qualification of this Agreement shall be valid unless it is in writing and is executed by both Parties.

8. HEADINGS

The division of this Agreement into paragraphs and the use of headings is for convenience of reference only and shall not modify or affect the interpretation or construction of this Agreement or any of its provisions.

IN WITNESS WHEREOF the Parties have signed this Agreement on **this day of** .

Innovative beauty lab inc		Company name:	
Signature:		Signature:	
Name:	Ross (Rasoul) Soly, PhD	Name:	
Title:	Founder and CEO	Title:	
	(Authorized Signatory)		